DEBATE



Critical Debate on Property inequality

In most parts of our country, a son has a right by birth to a share in the undivided family property equal to the father's while a daughter can claim no such right. The Hindu Succession Act of 1956 granted daughters equal inheritance rights with sons in their father's share of the undivided family property.

Critical Debate: Teacher can form two groups. Each group consists of threemembers and one moderator. Team A will support the Hindu Succession Act of 1956 and Team B will oppose the Act.

4.5 Property

Property is considered as a natural right which is necessary for human dignity, freedom and dignity of life. Property refers to the legal relations between the persons with respect to specific things which may be material or abstract.

4.5.1 *Locke* and the Utilitarian Justification

According to ***Locke***, the Government's main function is to guarantee every citizen the protection of their individual rights and secure conditions to enjoy their properties peacefully. Humans need property which is also the necessary means of life.

Hence, the utilitarian's state that the system of property rights is necessary if the individuals is to achieve a sense of happiness. If at all the governments want to promote the happiness of it people, productivity must be encouraged by protecting individual's property rights. No government should take away the property from the people who are expected to possess and enjoy.

4.5.2 Feminist Perspectives

With the advent of women empowerment in the 20th century, women too claim equal status. Feminist scholars state that an important condition for the subjugation of women has been owing to denial of access of women to resources to income, such as land. This is owing to the prevailing patterns of male ownership and control of such resources. Owing to this, status of women has been one of the dependence on men. This dependent status has actually led to their rights to own and claim property.

The Indian Constitution does not recognize property right as a fundamental right. In the year 1978, the 44th amendment eliminated the right to acquire, hold and dispose of property as a fundamental right. However, Article 300 (A) was inserted in another part of the Constitution. This was to affirm that no person shall be deprived of his property save by authority of law. Hence, this has become a statutory right now.

Glossary



Justiciable: Subject to trial in a court of law.

Liberty: The state of being free within society from oppressive restrictions imposed by authority one's behaviour or political views.

Democracy: The practice or principles of social equality.

Obligation: Duty or commitment.

Patriotism: Vigorous support for one's country.

Acquisition: Buying or obtaining of assets

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